

SFIO Vs/. M/s Adarsh Builders and others.

Present : Shri Satish Aggarwala, Senior Special Public Prosecutor for applicant-DRI Shailendra Singh Bhadauria.

This is an application moved o behalf of DRI (Hqs.) seeking permission to make enquiries under Section 108 of the Customs Act, 1962, from Jainam Madhukant Rathod @ Jainam Jain, who is in judicial custody since 28.08.2019 in the matter of SFIO Vs. Adarsh Builders. It is submitted that Directorate of Revenue Intelligence, Headquarters, New Delhi, is conducting investigation in respect of evasion of Customs duty against M/s Shivani Network and Jainam Madhukant Rathod @ Jainam Jain and investigation initiated by the Directorate of Revenue Intelligence, Headquarters, New Delhi, is at advance stage, hence, enquiries from Jainam Madhukant Rathod @ Jainam Jain under Section 108 of the Customs Act, 1962, is to be made. In the end, it is prayed that Shri Shailendra Singh Bhadauria, Senior Intelligence Officer may be permitted to make enquiries from Jainam Madhukant Rathod @ Jainam Jain and S/Shri Ishu Kumar Verma and Anirudh Singh Bhati, Intelligence Officers may be permitted to assist him in making enquiries from Jainam Madhukant Rathod @ Jainam Jain and the above named officers may also be permitted to carry the departmental file/record along with them.

Heard. Considering the facts mentioned in the application and the submissions put forth by learned Senior Special Public Prosecutor for applicant-DRI the concerned department i.e. Directorate of Revenue Intelligence, Headquarters, New Delhi, is hereby permitted to make necssary enquiries under Section 108 of the Customs Act, 1962. The District Jail, Gurugram at Bhondsi, is hereby directed to allow the officers, namely, Shri Shailendra Singh Bhadauria, Senior Intelligence Officer, Shri Ishu Kumar Verma and Shri Anirudh Singh Bhati, Intelligence Officers, DRI along with their departmental files to visit District Jail, Gurugram, on **21.09.2021** for making enquiries/ recording statement of accused Jainam Madhukant Rathod @ Jainam Jain, as per provisions of Section 108 of the Customs Act, 1962, in the

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above mentioned case as per rules. A copy of this order be forwarded to the Superintendent, District Jail, Gurugram at Bhondsi and a copy of the same be also given *dasti* to the applicant, forthwith. This application stands disposed of accordingly. Papers be tagged with the main file.

Announced in open Court.

Dated : 17.09.2021.

Rakesh SG-I.

(Phalit Sharma)

Additional Sessions Judge,

Gurugram (UID No. HR0105).